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U. S. Analyzes Comments by U. S. S. R. for Effecting Japanese Peace Treaty

U. S. MEMORANDUM TO U. S. S. R.

[*Released to the press May 20*]

The following United States reply to the remarks of the Union of Soviet Socialist Republics dated May 7, 1951, on the draft Japanese peace treaty was handed to the Soviet Ambassador in Washington on May 19, 1951.

The Government of the United States has carefully considered the remarks of the Government of the Soviet Union of May 7, 1951, relative to the draft of a Japanese peace treaty which the Government of the United States submitted on March 29, 1951. These remarks show the persistence of a major difference of opinion as regards procedure. However, as regards substance, the Government of Soviet Union raises objection only to the proposed treatment of (a) Formosa and the Pescadores; (b) the Ryukyu and Bonin Islands; (c) Japan's future security; and even here the differences are only partial, not total. The Soviet Government's analysis would seem to constitute a genuine, if unintended, tribute to the regard for balanced justice with which the draft treaty was prepared.

I

The paragraphs of the Soviet Government's Remarks numbered I, deal with procedure.

The Soviet Government asserts that under the Potsdam Agreement of August 2, 1945, "the drawing up of a peace treaty with Japan has been laid upon the United States, the Soviet Union, China and Great Britain," constituting for this purpose the Council of Foreign Ministers.

This view of the Soviet Government has been put forward on several occasions and has as often been rejected by the Government of the United States.

The Potsdam Agreement of August 2, 1945, contemplates that the Council of Foreign Ministers thereby established would, "as its immediate important task," draw up "treaties of peace with Italy, Rumania, Bulgaria, Hungary and Finland" and propose "settlements of territorial questions outstanding on the termination of the war in Europe." It is then provided that the Council "shall be utilized for the preparation of a peace settlement for Germany." It is finally provided that "Other matters may from time to time be referred to the Council by agreement between the Member Governments."

Thus, the Potsdam Agreement between the Government of the Soviet Union, the United Kingdom and the United States did not mention the Japanese Peace Treaty. This was natural, for the war with Japan was then in full vigor and the Soviet Union was then neutral in that war.

The Council of Foreign Ministers can, of course, deal with "other matters" than the European matters specified, but only "by agreement between the Member Governments."

The United States has not agreed and does not agree to the reference to the Council of Foreign Ministers of the matter of making a Japanese peace treaty. The reason, among others, is that the systematic misuse in the Council of veto power militates against the speedy achievement, through the Council, of an early peace treaty. Furthermore, the procedures of the Council would give a secondary role to Allied Powers which bore a greater burden of the Pacific war than did the Soviet Union.

The Government of the Soviet Union urges that the peace-making procedure should fully take account of the interests of China in a Japanese peace treaty. The procedure being presently followed does that. It is true that the United States does not seek guidance from a convicted aggressor, but the real interests of China are fully reflected in the present draft treaty. For example, by Article 11, "Japan renounces all special rights and interests in China" and Article 19 makes this renunciation automatically effective. It is noteworthy that the Soviet Government, which in Parts II and III of its remarks, deals fully with substantive issues, suggests no modification or addition in favor of China except in relation to Formosa and the Pescadores, as to which it is suggested that Japan should do more than liquidate its own title. This large measure of acceptance by the Government of the Soviet Union of the substantive provisions dealing with China testifies to the scrupulous regard for China's interests with which the draft treaty was prepared.

II

The paragraphs of the Soviet Government's remarks numbered II deal with the substance of the draft treaty.

(a) As to territorial matters, the Government of the Soviet Union suggests that the draft treaty does not faithfully reflect the Surrender Terms because it does not provide that "the Island of Taiwan and the Pescadores Islands should be returned to China."

The territorial clause of the Surrender Terms stipulated "The terms of the Cairo Declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor islands as we determine." The draft treaty would, in fact, limit Japanese sovereignty accordingly.

The Cairo Declaration provided that "Manchuria, Formosa, and the Pescadores, shall be restored to the Republic of China."

The Government of the United States notes that the remarks of the Soviet Government fail to quote accurately the Cairo Declaration. The word "Manchuria" is deleted and "China" is substituted for "the Republic of China."

In view of the known acquisition by the U. S. S. R. of zones of interest in Manchuria, the United States Government is prompted to inquire as to the significance of the present avoidance by the Soviet Government of reference to the restoration of Manchuria.

Furthermore, in view of the fact that the Government of the Soviet Union has itself pointed out on numerous occasions that the "Republic of China" is not identical with what the Soviet Government now refers to as the "Chinese People's Republic," the Government of the United States inquires of the Government of the Soviet Union whether it in fact now desires that Manchuria, Formosa and the Pescadores should be restored to "the Republic of China."

The draft treaty proceeds on the assumption that Japanese sovereignty "shall be limited" to exclude sovereignty over Formosa and the Pescadores, according to the Surrender Terms and that if this is done by Japan, Japan will have done all that can be required of her and the Japanese people ought not to be denied a state of peace because of a difference of opinion among the Allied Powers as to the subsequent disposition of Formosa and the Pescadores.

The Government of the Soviet Union criticizes the provision that the Ryukyu, Bonin, and certain other islands may be placed under United Nations trusteeship with the United States as administering authority.

It is true that the Surrender Terms, neither by themselves, nor by the incorporated reference to the Cairo Declaration, mention by name South Sakhalin or the Kurile Islands, now occupied by the Soviet Union, or the Ryukyu, Bonin Islands or other islands mentioned in the Remarks of the Soviet Government. Since, however, the Surrender Terms provided, as indicated, that Japanese sovereignty should be limited to the four main islands and such minor islands as may be determined, it is consonant with the Surrender Terms for the Allied Powers by treaty of peace with Japan to deal with Japanese islands other than the four main islands mentioned.

(b) As to demilitarization, the Soviet Government complains that the present draft does not guarantee against the restoration of Japanese militarism and does not limit the size of armed forces in Japan. It is said that this cannot be reconciled with "known agreements of the powers concerning demilitarization of Japan."

The Soviet Government does not attempt to identify the so-called "known agreements". In fact there are none, outside of understandings dealing with the occupation period.

Of the agreements mentioned by the Soviet Government's remarks, neither Cairo nor Yalta touch on the subject. The Potsdam Surrender Terms provide that "until there is convincing proof that Japan's war-making power is destroyed, points in Japanese territory to be designated by the Allies shall be occupied," and that "the Japanese military forces, after being completely disarmed, shall be permitted to return to their homes with the opportunity to lead peaceful and productive lives."

The United States Government is satisfied that "Japan's war-making power is destroyed." Apparently the Soviet Government shares that conviction, since it says that the occupation of Japan has "impermissibly dragged on". Furthermore, the United States, so far as it is concerned, has in fact completely disarmed the Japanese military forces under its control and has assured that they now lead peaceful and productive lives. Of the belligerents, only the Soviet Government has failed to comply with this provision and, in violation of the Surrender Terms, withholds from return to their homes and peaceful lives approximately 200 thousand Japanese soldiers. The people of Japan, eagerly await the return to peaceful pursuits of these thousands of Japanese soldiers, as promised by the Surrender Terms.

With respect to the avoidance of any future offensive military threat from Japan, this is a matter of profound concern to the United States, which bore the burden of Japan's war of aggression for nearly 4 years, as against 6 days of Soviet Union belligerency. It is the belief of the United States Government that the most effective means to the desired end is to make the future security of the Japanese area a matter of collective international concern, which would as a practical matter assure that the measures which the Japanese might take for their own security, would develop as a cooperative rather than as a purely national project.

The President of the United States indicated in his statement of April 18, 1951, that the United States Government is prepared now to take what the President referred to as "natural initial steps in the consolidation of peace" in the Pacific Ocean

area and, as one of such steps, to enter into a post-treaty security arrangement with Japan. The United States Government contemplates that this arrangement would accept the principle that Japan should not possess military forces which could become an offensive threat.

The United States Government is not disposed to rely upon the dependability of treaty limitations on armament such as were imposed upon Rumania, Bulgaria, and Hungary by the Treaties of Peace and which limitations already are being grossly exceeded.

(c) As to ending the Occupation, the Soviet Government alleges that the present draft does not establish any period for the withdrawal of occupation troops from Japan. On the contrary, under the draft treaty, the occupation would cease upon the coming into force of the treaty. If, after the treaty comes into force, any allied troops are in Japan they will not be there as occupation troops but pursuant to such collective security arrangement as Japan may make voluntarily. Such arrangement would carry no offensive threat.

The Government of the Soviet Union refers to the fact that the territory of Japan and its natural and human resources are even now being utilized in connection with what is referred to as "armed intervention in Korea" by which is presumably meant the efforts of the United Nations to repel armed aggression in Korea.

The assistance which the Japanese in fact are rendering to the United Nations action in Korea is within the demilitarization limits established by Far Eastern Commission decisions, is nonbelligerent in character, and is in accord with the Charter and recommendation of the United Nations.

According to Article 2, Paragraphs 5 and 6, of the Charter even "states which are not members of the United Nations" are required to "give the United Nations every assistance" so far as may be necessary for the maintenance of international peace and security, and General Assembly Resolution No. A/1771 adopted February 1, 1951, calls upon "all states and authorities to continue to lend every assistance to United Nations action in Korea."

(d) As to Japan's peacetime economy, the Soviet Government alleges that the draft treaty "ignores the necessity of removing limitations with respect to the free development of the peaceful economy of Japan." In reality, the draft treaty, by restoring to Japan complete sovereignty without any limitation upon the development of its peaceful economy and without imposing burdensome current reparation liabilities, would accomplish completely the result which the Government of the Soviet Union professes to desire.

III

The Paragraphs of the Soviet Government's Remarks numbered III contain certain proposals designed, in the words of the Soviet Government, to bring about the "speedy conclusion of a peace treaty with Japan."

(1) The Government of the Soviet Union suggests, as to procedure, the calling of a session of the Council of Foreign Ministers in June or July of 1951 to be composed of representatives of the United States, China, Great Britain and the Soviet Union to embark upon the preparation of a peace treaty with Japan. For the reasons earlier stated, and because all experience shows that this procedure would not in fact achieve a "speedy conclusion of a peace treaty with Japan," the United States Government cannot agree to this procedural proposal.

(2) The Soviet Government proposes that in drawing up a Japanese peace treaty the powers concerned should be governed by certain basic aims. With one qualification, these basic aims are, in fact, reflected in the present draft treaty, namely:

a. Japan should become a peace-loving, democratic, independent state.

Japan already is a peace-loving and democratic state and the Treaty would give it independence.

b. Democratic rights should be guaranteed and organizations to deprive people of their democratic rights . . . should not be allowed.

These matters are taken care of by the Japanese Constitution and by the Declaration, contemplated by the present draft treaty, that Japan will strive to realize the objectives of the United Nations Universal Declaration of Human Rights and to create internally conditions of stability and well-being as envisioned by Articles 55 and 56 of the Charter of the United Nations and already initiated by postwar Japanese legislation.

c. As guarantee against a revival of Japanese militarism, limitation should be established in the treaty on the size of Japanese armed forces in order that they may not exceed the requirement of self-defense.

The proposal of the Soviet Government seems to assume that Japan will have to depend, for defense, solely on its own armed forces; and that its requirement, in this respect, can now be measured definitely, for all time. But the Charter of the United Nations recognizes the inherent right of collective, as well as individual, self-defense. Generalissimo Stalin, in his memorable address of March 10, 1939, pointed out that "adequate defense against aggression requires collective security, the policy of collective resistance to the aggressors" and, he says, the policy of "let each country defend itself from aggressors" means "conniving at aggression."

The present suggestions of the Soviet Government that Japan shall have armed forces as required for its self-defense, coupled with the further Soviet proposal (4) that there can be no other troops in Japan, seems a reversion to the principle of "let Japan defend itself" and consequently, as Generalissimo Stalin said, a "conniving at aggression."

Furthermore, to define "the size of Japanese armed forces" needed for "requirements of self-defense" as the Government of the Soviet Union now proposes, would not only be difficult, but might be dangerous. Japanese land, sea, and air forces adequate for self-defense under present troubled circumstances might also, under other circumstances, be adequate for offense.

It is the hope and expectation of the United States Government that application of the policy of collective security envisaged by Article 7 of the draft treaty will provide Japan with effective security with much less Japanese armament than would be required if the Treaty reflected the policy of "let each country defend itself."

d. No limitation in the matter of development of a peaceful economy should be laid on Japan.

The present draft contains no such limitation.

e. All limitations with respect to trade of Japan with other states be removed.

The present draft imposes no limitations on the right of Japan to trade with others.

(3) The Government of the Soviet Union suggests providing in the treaty that "Japan will not enter any coalition directed against any of the states taking part with its armed forces in war against militaristic Japan."

It is the view of the Government of the United States that Japan should not enter into any coalition directed against *any* state, whether or not it was a belligerent in the war against Japan. This is provided for by Article 6 of the draft Treaty whereby Japan would agree, in accordance with Article 2 of the Charter of the United Nations, to refrain from the threat or use of force against the territorial integrity or political independence of any state.

(4) The Government of the Soviet Union suggests that the peace treaty should provide that "all occupation forces will be withdrawn from Japanese territory in the course of not more than 1 year and no foreign state will have troops or military bases in Japan."

It is contemplated by the draft treaty that the occupation will end immediately upon the coming into force of the treaty of peace. It will not be prolonged even for 1 year thereafter.

With respect to the presence in Japan of the troops of any other state the United States Government would not be willing to deny to Japan what the Charter of the United Nations refers to as the "inherent right of . . . collective self-defense."

(5) The Government of the Soviet Union suggests that "the states signing the Peace Treaty with Japan will support the entry of Japan into the United Nations."

The present draft contemplates that Japan will promptly apply for admission to the United Nations and the Government of the United States welcomes the recognition by the Government of the Soviet Union that Japan is qualified for membership.

IV

The Government of the United States earnestly urges that the Government of the Soviet Union should continue to cooperate in the Japanese peace-making already in process and now far advanced. The United States Government does not seek, as is alleged, to make a "separate" peace treaty with Japan. On the contrary, it seeks the participation of all concerned.

The Soviet Government complains because the United States Government has taken the lead in the initial stages of formulating peace treaty terms. That complaint seems not well taken by a state which, in the hour of victory, joined in recognizing the unique position of the United States in relation to Japan and in placing upon the United States the sole responsibility for naming and issuing directives to the Supreme Commander for the Allied Powers in an occupation which was designed to prepare Japan for a "new order of peace, security and justice." The United States Government accepted that responsibility and has invested in the occupation not only large resources and much effort, but hopes and aspirations for a Japan which would henceforth live with others as a good neighbor. The United States Government would fail utterly in the discharge of the occupation responsibility which the Government of the Soviet Union, among others, placed upon it if it did not take a timely initiative in transforming that occupation into a peace which will be just and durable.

Already the views of the governments principally concerned have been thoroughly canvassed through discussions initiated last September and continuously pursued ever since. The draft submitted on March 29th to the Government of the Soviet Union, as pointed out in the covering memorandum, to a considerable extent reflects views which the Government of the United States had obtained as a result of cooperation manifested by other governments. Among the views taken into account were the views of the Soviet Government.

The Soviet Government now states that it "is not true" that there have been "an exchange of opinions between representatives of the Government of the United States of America and representatives of the Government of the Soviet Union."

The undeniable facts are that on October 6, 1950, November 20, 1950, and on January 13, 1951, there were personal discussions of the proposed

Japanese peace treaty between the Soviet Deputy Minister of Foreign Affairs, J. Malik, and John Foster Dulles. Furthermore, on November 20, 1950, Malik submitted to Dulles on behalf of the Soviet Government an aide mémoire dealing with the principles underlying the proposed treaty and on November 26, 1950, Dulles transmitted to Malik a reply memorandum.

The Government of the United States is thus at a loss to understand what the Soviet Government now means when it says that it is "untrue" that there has been "an exchange of opinions" between representatives of the Governments of the United States and of the Soviet Union.

The present remarks on behalf of the Government of the Soviet Union in response to the United States Government's memorandum of March 29, 1951, and in further development of its views heretofore submitted, orally and in writing, shows that the differences which stand between the Government of the Soviet Union and the peace terms embodied in the March draft are not enough to prevent an agreed peace, assuming that there is genuine desire on the part of the Soviet Union promptly to give peace to Japan. Therefore, the Government of the United States trusts that the Government of the Soviet Union will continue to pursue to a favorable conclusion the procedures now under way, rather than to seek now to shift to procedures which, in all candor, it must recognize would not in fact be productive of the "speedy conclusion" which the Soviet Government states that it seeks.

The United States stands ready to resume prompt and intensive diplomatic discussions with the Government of the Soviet Union under circumstances that will be calculated to advance a just treaty to a speedy conclusion.

REMARKS BY THE U.S.S.R.[1]

The Government of the U.S.S.R. received on March 29, 1951, from the Government of the United States of America a draft of a peace treaty with Japan. In connection with this, the Soviet Government considers it necessary to make the following remarks.

In spite of the fact that more than 5 years have already passed since the time of the termination of war with Japan, the question of a peaceful settlement for Japan remains unresolved. Such a situation has been created, first of all, as a result of the position taken by the Government of the U.S.A., which under various pretexts has postponed not only the conclusion but the very preparation of a peace treaty. In this connection, the Government of the U.S.A. has repeatedly rejected the proposals of the Soviet Government for the preparation of a peace treaty with Japan jointly with other Governments, as envisaged by the appropriate international agreements. As a result of this, the occupation of Japan by foreign troops has impermissibly dragged on.

1. The remarks of the Soviet Government, concern, first of all, the incorrect preparation of a peace treaty with Japan.

In the memorandum accompanying the American draft of a peace treaty with Japan, the Government of the U.S.A. declares that the draft referred to was drawn up after an exchange of opinions between representatives of the Government of the U.S.A. and representatives of the Governments of several other states, including the Soviet Union. It should be noted that this last is not true, since the Soviet Government as early as the beginning of March of this year published a statement concerning its refusal to carry on separate negotiations with representatives of the U.S.A. with regard to the preparation of a peace treaty with Japan. In this connection, the Soviet Government proceeded from the position that the preparation of a peace treaty with Japan cannot be the affair of any one Government or of a query conducted by it of the opinions of other interested Governments, but should be a joint affair of all these Governments, as is provided for by the appropriate international agreements. Nevertheless, the Government of the U.S.A. did did not refrain from the separate preparation of a peace treaty with Japan, aiming at arrogating this right exclusively to itself, which is a violation of the obligations undertaken by it concerning the preparation of a peace treaty with Japan jointly with the U.S.S.R., China, and Great Britain, with the participation of other interested states.

In accordance with the Potsdam Agreement of August 2, 1945, a Council of Foreign Ministers of the five powers—U.S.A., U.S.S.R., China, Great Britain, and France—was established, in which connection it was directly stated in the Potsdam Agreement that the Council of Foreign Ministers was being created, in the first instance, for "preparatory work on peaceful settlement," and that in drawing up the corresponding peace treaties "the Council would consist of members representing those states which have signed the terms of capitulation dictated to that enemy state which the given task concerns." The peace treaties with Italy, Rumania, Hungary, Bulgaria and Finland were prepared and concluded in conformity with this. That the drafting of a peace treaty with Japan has been laid upon the U.S.A., the U.S.S.R., China and Great Britain, who, as is known, signed the Japanese surrender document, also flows from the Potsdam Agreement referred to. As early as 1947 the Soviet Government proposed calling a special session of the Council of Foreign Ministers composed of the representatives of China, U.S.A.,

[1] Handed to Ambassador Kirk by Acting Foreign Minister Bogomolov on May 7, 1951.

U.S.S.R. and Great Britain in order to embark upon the preparation of a peace treaty with Japan. In this connection, it was envisaged that all states who participated with their armed forces in the war with Japan would be drawn into the preparatory work for drawing up a peace treaty with Japan. But this proposal as well as other repeatedly renewed efforts of the Soviet Government directed toward hastening the conclusion of a peace treaty with Japan have furnished no positive results, since the Government of the U.S.A. ignores the necessity of calling a Council of Foreign Ministers for the preparation of a peace treaty with Japan as well as calling a peace conference for the consideration of this treaty.

The Soviet Government considers it necessary to mention particularly the impermissibility of excluding China from the preparation of a peace treaty with Japan. It is known that China was subjected during the course of many years to cruel aggression on the part of militaristic Japan, waged a protracted hard war against Japanese imperialism and bore the greatest sacrifices from the aggression of Japan. It is natural, therefore, that the Government of the Chinese People's Republic, being the only legal representative of the Chinese people, has a special interest in the preparation of a peace treaty with Japan and in the establishment of lasting peace in the Far East. It is perfectly obvious that without the participation of the Chinese People's Republic in the work of preparing a peace treaty with Japan a real peaceful settlement in the Far East is not possible.

From this it is seen that the Government of the United States is endeavoring to exclude the U.S.S.R., the Chinese People's Republic and other countries from the preparation of a peace treaty with Japan and to take this matter exclusively into its own hands in order unilaterally to impose upon Japan through the procedure of a dictate conditions of this treaty satisfactory to the Government of the U.S.A., utilizing for this purpose the dependence of the present Government of Japan upon the American occupation authorities.

2. The remarks of the Soviet Government concern, secondly, the fact that the American draft of a peace treaty with Japan contains, from the point of view of the substance of the matter, several incorrect contentions incompatible with existing agreements between the powers.

In such known international documents as the Cairo Declaration of 1943, the Potsdam Declaration of 1945, and the Yalta Agreement of 1945 the Governments of the United States of America, Great Britain, China, and the U.S.S.R. took upon themselves definite obligations with relation to a future peace treaty with Japan.

In these documents the territorial borders of Japan were defined and it was pointed out that there should exist in Japan "a peacefully disposed and responsible government in conformity with the freely expressed will of the Japanese people," after which the occupation troops should be withdrawn from Japan.

In these documents, as well as in subsequent agreements between the powers, it is stated that there should in Japan "be eliminated all obstacles to the revival and straightening of democratic tendencies among the Japanese people" and that broad possibilities for the development of the peaceful economy of the country should be opened up. Along with this it is stated there that it is necessary to finish with the authority and influence of the militarists and to accomplish the demilitarization of Japan.

The American draft of a peace treaty with Japan ignores in one degree or another these obligations of the powers which flow from the documents referred to above.

First of all, this must be said of territorial questions.

For example, in the Cairo Declaration of 1943 it is directly stated that the Island of Taiwan and the Pescadores Islands should be returned to China. In this American draft it is stated only that Japan renounces all rights to Taiwan and Pescadores Islands, but nothing is said regarding the transfer of Taiwan and Pescadores Islands to China. From this the conclusion can be drawn that the draft leaves the present situation with Taiwan and the Pescadores Islands, which have actually been torn away from China, without change, in violation of the Cairo Agreement concerning the return of these islands to China.

The American draft provides, further, for taking the Ryukyu, Bonin, Rosario, Volcano, Parece Vela, and Marcus Islands out from under the sovereignty of Japan and transferring them under the administration of the U.S.A. under the pretext of establishing a trusteeship over them, allegedly on the part of the United Nations Organization. Inasmuch, however, as the wresting of the islands named away from Japan is envisaged neither by agreement between the powers nor by decision of United Nations in the person of the Security Council, such wresting away does not have any justification.

Those deviations on military matters from the international agreements mentioned above which are contained in the American draft of a peace treaty with Japan possess even greater significance. It suffices to say that the American draft not only does not contain a guarantee against the restoration of Japanese militarism but in general does not set forth any limitations with relation to the size of the armed forces in Japan.

It is known that in the peace treaty with Italy, which together with Japan was one of the primary aggressors in the Second World War, precise limitations on the proportions of the Italian army, the number of naval fleet personnel and also the size of the air forces are contained. Meanwhile, no limitations on the armed forces of Japan are contained in the American draft. Thus, Japan

is placed in a privileged position in comparison with Italy, although there is no basis for this. From this it is seen that Japan itself will decide the matter of the size of its armed forces for so-called "self-defense." The Soviet Government considers that this is tantamount to allowing Japan to restore militarism. It is quite clear that such a position can in no way be reconciled with certain agreements of the powers concerning demilitarization of Japan.

Likewise the fact cannot be passed over that the American draft does not establish any period for the withdrawal of occupation troops from Japan and is directly designed to leave American occupation troops and military bases in Japan even after the conclusion of a peace treaty. Consequently, even after that "peaceful settlement" which the United States is preparing for Japan, the military occupation of Japan will not be discontinued and the United States of America will remain the real master in Japan.

As is known, in the peace treaty with Italy the withdrawal of occupation troops from Italy within a 3-months period after the conclusion of peace was provided for. Thus, Japan falls into a worse position in comparison with Italy, and the U.S.A. receives unlimited right to continue the occupation of Japan after the signing of peace with Japan for an unlimited period. It is quite clear that all this can in no way be reconciled with the Potsdam Declaration of 1945.

It is necessary to add to this that already at the present time the Government of the U.S.A. is utilizing the occupation of Japan by American troops for other purposes than were agreed among the states signing the Japanese surrender document. American occupation troops located on Japanese territory are utilizing the territory of Japan, its material and human resources for armed intervention in Korea, which is incompatible with international agreements according American troops the right of occupation in Japan only for the purposes of carrying out measures for the demilitarization and democratization of Japan.

Finally, the American draft ignores the necessity of removing limitations with respect to the free development of the peaceful economy of Japan. It is quite clear that without the development of the peaceful economy of the country and without the existence of normal trade with other countries it is not possible to create a reliable basis for the economic upsurge of Japan and growth in the welfare of the Japanese people.

The Soviet Government also has other remarks on the draft of the treaty which it intends to set forth at a meeting of the interested powers.

3. The Soviet Government, constantly insisting on a speedy conclusion of a peace treaty with Japan, considers that a peace treaty should be drawn up on the basis of international agreements which were concluded between the powers during the period of the Second World War, and the preparation of a draft treaty should be carried on jointly by representatives of the U.S.A., the Chinese People's Republic, U.S.S.R. and Great Britain with all the member states of the Far Eastern Commission being drawn into the matter.

In conformity with this, the Soviet Government proposes:

First.—To call in June or July of 1951 a session of the Council of Ministers of Foreign Affairs composed of representatives of U.S.A., China, Great Britain and U.S.S.R. in order to embark upon the preparation of a peace treaty with Japan having in view bringing into the preparatory work for drawing up a peace treaty with Japan representatives of all states participating with their armed forces in the war with Japan, in order that a draft of a peace treaty may be submitted for the consideration of a peace conference.

Second.—To conduct the drafting of a peace treaty with Japan on the basis of the Cairo Declaration, the Potsdam Declaration, and the Yalta Agreement, governed by the following basic aims:

A. Japan should become a peace-loving, democratic, independent state.

B. Democratic rights should be guaranteed to the population of Japan and the existence of such organizations be they political, military, or of military character whose purpose is to deprive the people of their democratic rights, as was provided in the peace treaty with Italy, should not be allowed.

C. As a guarantee against the revival of Japanese militarism limitations should be established in the treaty on the size of Japanese armed forces in order that they may not exceed the requirements of self-defense, as was established in the peace treaty with Italy.

D. No limitations be put upon Japan in the matter of the development of her peaceful economy.

E. All limitations with respect to the trade of Japan with other states be removed.

Third.—To provide in the treaty that Japan will not enter any coalition directed against any of the states participating with their armed forces in the war against militaristic Japan.

Fourth.—To specify precisely in the treaty that after the conclusion of a peace treaty with Japan all occupation troops will be withdrawn from Japanese territory in the course of not more than 1 year and no foreign state will have troops or military bases in Japan.

Fifth.—To agree that the states signing the peace treaty with Japan will support the entry of Japan into the United Nations Organization.

Moscow, *May 7, 1951.*